LANDLORDHEAVEN
LEGAL DOCUMENTS FOR LANDLORDS

CASE ID
golden-standard-tenancy-001

JURISDICTION
England

GENERATED
30 April 2026

PRESCRIBED INFORMATION

Tenancy Deposit Scheme

As required by The Housing (Tenancy Deposits) (Prescribed Information) Order 2007

1. THE LANDLORD

Name: Jane Landlord
Address: 3 Owner Road, London, SW1A 2BB
Telephone: 07123 456789
Email: jane@example.com

3. THE TENANT(S)

Tenant 1:
Name: Alice Tenant
Address: 12 Example Street, London, SW1A 1AA
Telephone: 07000 111111
Email: alice@example.com

4. THE PROPERTY

Address: 12 Example Street, London, SW1A 1AA

5. DEPOSIT DETAILS

Amount of Deposit: £1500.00

Date Received: 2 May 2026

How held: Insured scheme - the deposit is held by the landlord or agent and backed by the scheme

6. DEPOSIT PROTECTION SCHEME

Scheme Details

Scheme Name: DPS

Contact Information:
See the deposit scheme website or membership confirmation for the current registered address.

Telephone: See scheme website
Email: See scheme website
Website: https://www.depositprotection.com/

Scheme Type: Insurance-based

How it works: The landlord holds the deposit but it is protected by insurance. At the end of the tenancy, the landlord must return the deposit or use the scheme's dispute resolution service if there is a disagreement.

Deposit Reference: DPS-EXAMPLE-2026-0001

Date Protected: 2 May 2026

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7. CIRCUMSTANCES WHEN DEPOSIT MAY BE RETAINED

The landlord or agent may make deductions from the deposit for:

1. **Unpaid Rent**
Any rent or other money owed under the tenancy agreement at the end of the tenancy.

2. **Damage**
Damage to the property, furnishings, or contents beyond normal wear and tear. This includes:
- Broken items
- Burns, cuts, or stains beyond normal wear
- Damage caused by pets
- Holes in walls
- Broken fixtures or fittings

Normal wear and tear is not covered - this means reasonable deterioration from ordinary living.

3. **Cleaning**
Professional cleaning costs if the property is returned in an unreasonably unclean condition compared to the check-in inventory.

4. **Missing Items**
Replacement costs for:
- Lost keys
- Missing items from the inventory
- Removed fixtures or fittings

5. **Other Breaches**
Costs arising from other breaches of the tenancy agreement.

Evidence Required

The landlord must provide evidence of any claimed deductions:

- Check-in and check-out inventories
- Photographs
- Invoices for repairs or cleaning
- Receipts
- Expert reports if necessary

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8. APPLYING FOR RELEASE OF DEPOSIT

At End of Tenancy

Both parties should:

Step 1: Inspect the property together at check-out

Step 2: Compare the condition to the check-in inventory

Step 3: Discuss and agree any deductions

Step 4: Complete the deposit return form

Step 5: Submit the agreed allocation to the scheme

The landlord will return your share within **10 working days** of agreement.

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9. DISPUTE RESOLUTION

If You Cannot Agree

If you and the landlord cannot agree on deposit deductions:

Step 1: Try to negotiate

- Communicate in writing
- Exchange evidence (photos, receipts)
- Consider compromise

Step 2: Use Alternative Dispute Resolution (ADR)

Both parties can ask the scheme to resolve the dispute using its free, impartial ADR service.

ADR Process

1. **Either party raises a dispute** with the scheme
2. **Both parties submit evidence** (photos, inventory, receipts, statements)
3. **An independent adjudicator reviews** all evidence
4. **A decision is made** (usually within 28 days)
5. **The scheme releases the deposit** according to the decision
6. **The decision is binding** on both parties

ADR Service Details

Service: DPS ADR Service
Contact: See scheme website
Email: See scheme website
Website: https://www.depositprotection.com/

Cost: Free to both parties

Time limit: You must raise a dispute within the deadline set by your deposit scheme after the tenancy ends.

Court Action

Alternatively, either party can take the matter to court, but this will involve:

- Court fees (approx £100 to £300)
- Possible legal costs
- Longer time to resolve
- Risk of a costs order

ADR is usually quicker, cheaper, and easier.

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10. YOUR RESPONSIBILITIES

During the Tenancy

To help make sure your deposit is returned in full:

- Pay rent on time
- Report maintenance issues promptly
- Keep the property clean and tidy
- Avoid damage beyond fair wear and tear
- Comply with the tenancy terms
- Maintain gardens (if applicable)
- Do not make unauthorised alterations

End of Tenancy

To maximise the return of your deposit:

- Give the correct notice period
- Clean the property to the check-in standard
- Repair any damage you caused
- Remove all belongings
- Return all keys and devices
- Settle final utility bills
- Attend check-out if possible
- Provide a forwarding address

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11. LANDLORD'S RESPONSIBILITIES

The landlord must:

- Protect the deposit within 30 days
- Provide prescribed information within 30 days

- Comply with the scheme's rules
- Provide evidence for any deductions
- Return the deposit within 10 days if there are no valid deductions
- Use ADR if a dispute arises
- Act reasonably and in good faith

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12. FAIR WEAR AND TEAR

Definition: Deterioration from ordinary use over time, considering:

- Length of tenancy
- Number of occupants
- Original condition
- Quality of items

Examples of Fair Wear:

- Faded curtains from sunlight
- Worn carpet in high-traffic areas
- Minor scuffs on walls
- Slight marks on worktops
- Loosening of joints from normal use

Not Fair Wear (Damage):

- Large holes in walls
- Carpet burns or major stains
- Broken furniture
- Cracked tiles
- Smashed fittings
- Major uncleanliness
- Pet damage

Disputes over fair wear and tear are common, so keep photos from check-in.

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13. BETTERMENT

Landlords cannot charge for "betterment" - leaving the property in better condition than it was at the start.

Example: If the carpet was 5 years old at check-in and worn when you leave, the landlord can only charge for the appropriate proportion of the replacement cost, not the cost of a brand-new carpet.

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14. YOUR RIGHTS

You have the right to:

- Have your deposit protected in an approved scheme

- Receive this prescribed information within 30 days
- Know how much deposit is being held
- Challenge unfair deductions
- Request evidence for deductions
- Use the free ADR service
- Receive your deposit back promptly
- Take legal action if the landlord does not protect the deposit

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15. PENALTIES FOR NON-COMPLIANCE

If the landlord fails to protect your deposit or provide prescribed information:

You can:

- Claim 1-3 times the deposit value in court
- Force return of the entire deposit
- Defend against possession claims

The landlord:

- May face a court order to pay a financial penalty
- May face deposit-compliance issues in later possession proceedings
- Cannot easily regain possession until compliance issues are addressed

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16. USEFUL CONTACTS

Your Deposit Scheme:
DPS
Tel: See scheme website
Web: https://www.depositprotection.com/

Citizens Advice:
Tel: 0800 144 8848
Web: www.citizensadvice.org.uk

Shelter Housing Advice:
Tel: 0808 800 4444
Web: www.shelter.org.uk

Tenancy Deposit Scheme Guidance:
Web: www.gov.uk/tenancy-deposit-protection

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17. CONFIRMATION OF RECEIPT

I/We confirm that I/we have received:

1. This prescribed information document
2. Details of the deposit protection scheme
3. Information on how to apply for the return of the deposit

4. Information on the ADR process

I/We understand our rights and responsibilities regarding the deposit.

Tenant 1:

Signed: _____

Name: Alice Tenant

Date: _____

LANDLORD/AGENT CONFIRMATION

I confirm that:

- The deposit has been protected in DPS
- This prescribed information has been provided within 30 days
- All information provided is accurate
- I will comply with the scheme's rules

Signed: _____

Name: Jane Landlord

Position: Landlord

Date:

IMPORTANT: KEEP THIS DOCUMENT SAFE

You will need this information when your tenancy ends. Keep it with your:

- Tenancy agreement
- Check-in inventory
- Deposit protection certificate

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LEGAL BASIS:

- Housing Act 2004
- The Housing (Tenancy Deposits) (Prescribed Information) Order 2007